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DEFENDANT'S MOTION TO DISQUALIFY PLAINTIFF'S COUNSEL ROBERT SAINBURG

Motion filed on February 18, 2026.

MOVING PARTY: Defendant Debbie Ann Shreve Trejo.

RESPONDING PARTY: Plaintiff Svetlana Belogolovskaya.

NOTICE: OK.

RELIEF REQUESTED: Defendant seeks an order disqualifying Robert Sainburg from representing Plaintiff in this action.

RULING: Denied.

BACKGROUND

On November 20, 2025, Plaintiff Svetlana Belogolovskaya filed this action against Defendant Debbie Ann Shreve Trejo. Plaintiff filed the First Amended Complaint on November 26, 2025. On November 24, 2025, Attorney Robert Sainburg filed a Notice of Limited Scope Representation. On March 23, 2026, the Court granted Plaintiff's motion for leave to file a Second Amended Complaint, and Plaintiff filed the Second Amended Complaint on March 24, 2026. Defendant filed an Answer on May 8, 2026. The Case Management Conference is scheduled for December 3, 2026.

Defendant filed the instant motion on February 18, 2026, supported by the declaration of Martin Simone. Plaintiff filed an opposition and nunc pro tunc correction on April 10, 2026, supported by the declaration of Robert Sainburg (Sainburg).

Defendant filed a reply on April 23, 2026, supported by the declarations of Martin Simone and Debbie Trejo. On May 5, 2026, Plaintiff filed a Substitution of Attorney naming Sainburg as attorney of record.

On May 20, 2026, the Court continued the hearing and ordered limited supplemental briefing. Defendant filed a supplemental brief on May 20, 2026. Plaintiff filed a responsive supplemental brief on June 15, 2026. The Court considers the supplemental briefing only to the extent it addresses the issues identified in the May 20, 2026 order.

DISCUSSION

"A trial court's authority to disqualify an attorney derives from its inherent power, codified at Code of Civil Procedure section 128, subdivision (a)(5), to control the conduct of its ministerial officers and of all other persons connected with its proceedings in furtherance of justice. Disqualification may be ordered as a prophylactic measure against a prospective ethical violation likely to have a substantial continuing effect on future proceedings." (Doe v. Yim (2020) 55 Cal.App.5th 573, 581 (Yim), citation omitted.)

Rule 1.7

California Rules of Professional Conduct Rule 1.7 (b) provides: "A lawyer shall not, without informed written consent from each affected client and compliance with paragraph (d), represent a client if there is a significant risk the lawyer's representation of the client will be materially limited by the lawyer's responsibilities to or relationships with another client, a former client or a third person, or by the lawyer's own interests." (Cal. Rules of Professional Conduct, rule 1.7 (b) (footnote omitted).)

A standing requirement is implicit in disqualification motions. (Great Lakes Construction, Inc. v. Burman (2010) 186 Cal.App.4th 1347, 1356 (Great Lakes).) "Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney." (Ibid, citation omitted.) In the absence of an attorney-client relationship, "some sort of confidential or fiduciary relationship must exist or have existed." (Ibid.) "Thus, a moving party must have standing, that is, an invasion of a legally cognizable interest, to disqualify an attorney." (Id. at p. 1357, citations omitted.) "[T]he standing requirement for attorney disqualification motions protects against the strategic exploitation of the rules of ethics and guards against improper use of disqualification as a litigation tactic." (Id. at p. 1358, citations omitted.)

Here, Defendant argues Sainburg has a personal-interest conflict because he co-occupies the property, is Plaintiff's spouse, and may benefit from the outcome. (Motion, p. 2; Supp. Brief, pp. 4-5.) Defendant does not contend she is or was Sainburg's client, and she identifies no confidential or fiduciary relationship with him. Defendant has not shown that the alleged conflict invades any legally protected interest of her own. To the extent Defendant contends Sainburg's own interests or relationships may materially limit his representation of Plaintiff, the protected interest belongs to Plaintiff in the first instance. "No precedent supports a court otherwise disqualifying a lawyer for potential ethical violations when the client wishes to continue being represented and the moving party cannot demonstrate it would be harmed by the continued representation." (In re Marriage of Murchison (2016) 245 Cal.App.4th 847, 853.) Defendant also relies on possible cross-liability arising from a threatened or anticipated cross-complaint, but no cross-complaint is presently before the Court. On the present record, rule 1.7 does not support disqualification at Defendant's request.

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Rule 3.7

The "advocate-witness rule" prohibits an attorney from acting as both advocate and witness in the same proceeding. (Kennedy v. Eldridge (2011) 201 Cal.App.4th 1197, 1208 (Kennedy).) Rule 3.7 provides that "[a] lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness" unless the lawyer's testimony relates to an uncontested issue,

the nature and value of legal services rendered in the case, or the lawyer “has obtained informed written consent from the client.” (Rules Prof. Conduct, rule 3.7(a), fn. omitted.) Comment 1 states that the rule applies to trials before a jury, judge, administrative law judge, or arbitrator. (Rules Prof. Conduct, rule 3.7, com. [1].) Comment 3 states: “Notwithstanding a client’s informed written consent, courts retain discretion to take action, up to and including disqualification of a lawyer who seeks to both testify and serve as an advocate, to protect the trier of fact from being misled or the opposing party from being prejudiced.” (Rules Prof. Conduct, rule 3.7, com. [3], fn. omitted.)

“Where a lawyer representing a party in trial is also a witness during the trial, his or her effectiveness, both as a lawyer and as a witness, may be impaired in the eyes of the fact finder. Such disadvantage inures to the detriment of the party being represented by the lawyer serving such a dual function.” (Smith, Smith & Kring v. Superior Court (1997) 60 Cal.App.4th 573, 578 (Smith).)

“[T]he trial court, when balancing the several competing interests, should resolve the close case in favor of the client’s right to representation by an attorney of his or her choice.” (Lyle v. Superior Court (1981) 122 Cal.App.3d 470, 482 (Lyle).) “[I]f a party is willing to accept less effective counsel because of the attorney’s testifying, neither his opponent nor the trial court should be able to deny this choice to the party without a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process.” (Ibid.)

In exercising its discretion, a court must consider “(1) ‘whether counsel’s testimony is, in fact, genuinely needed’; (2) ‘the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons’; and (3) ‘the combined effects of the strong interest parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case.’” (Yim, supra, 55 Cal.App.5th at pp. 583-584, quoting Smith, supra, 60 Cal.App.4th at pp. 580-581.) “[T]rial judges must indicate on the record they have considered the appropriate factors and make specific findings of fact when weighing the conflicting interests involved in recusal motions.” (Yim, supra, 55 Cal.App.5th at p. 584.)

Defendant contends Sainburg may act as advocate while also serving as a percipient witness to disputed communications and events.

Sainburg declares that Plaintiff gave informed written consent to his representation. (Sainburg Decl. ISO Opp. ¶ 3.) Plaintiff’s consent is not conclusive, but it is entitled to substantial weight. (Reynolds v. Superior Court (1986) 177 Cal.App.3d 1021, 1027.)

As to the first factor, Defendant has shown that Sainburg’s testimony is genuinely needed on contested issues. Plaintiff alleges that she acted “predominately through her husband” in approaching Defendant about the fence, communicating over a five-year period, contacting companies, experts, and salespersons, providing information about estimates, sending demands for performance, obtaining alleged authorization concerning the fence and Ficus, and addressing Ficus roots and branches during construction. (SAC ¶¶ 7-9, 16, 21.) Defendant declares that, except for one casual remark, she never spoke with Plaintiff about the fence dispute and that all communications regarding the fence were with Sainburg. (Trejo Decl. ISO Reply ¶¶ 3-4.) Plaintiff also concedes that Sainburg is a material witness to core disputed issues. (Opposition, p. 4.) This factor favors Defendant.

As to the second factor, the record does not support a finding that Defendant delayed unreasonably or brought the motion only as a tactical device. Defense counsel raised the disqualification issue by meet-and-confer correspondence on January 7, 2026, and Defendant filed the motion on February 18, 2026, early in the case, before a trial date was set, and before the ordinary prejudice associated with late disqualification had accrued. (Simone Decl. ISO Mot. ¶¶ 12-14; Simone Decl. ISO Mot., Ex. D.) Plaintiff argues the motion is tactical because the case involves modest damages and disqualification would increase Plaintiff’s costs. That concern is relevant to the balance, but the timing does not show the kind of delay or eve-of-trial disruption that would support rejecting the motion as tactical. This factor does not weigh against Defendant.

As to the third factor, the combined effect of Plaintiff’s right to chosen counsel, the cost and burden of replacement, and the need for a remedy tailored to an actual litigation risk weighs against the requested action-wide disqualification on the present

record. The “right of a party to be represented in litigation by the attorney of his or her choice is a significant right ... and ought not to be abrogated in the absence of some indication the integrity of the judicial process will otherwise be injured.” (Smith, *supra*, 60 Cal.App.4th at p. 580.) Plaintiff’s interest is substantial. Sainburg is Plaintiff’s chosen counsel, Plaintiff has provided informed written consent, Sainburg is familiar with the underlying neighbor dispute, and replacement counsel would likely impose expense disproportionate to the monetary value of the case.

Defendant is correct that rule 3.7 is not limited to jury trials. Comment 1 states that the rule applies to trials before a jury, judge, administrative law judge, or arbitrator. (Rules Prof. Conduct, rule 3.7, com. 1.) Plaintiff’s anticipated bench-trial point therefore does not remove rule 3.7 from the analysis. The point instead bears on the remedy. No trial date, trial format, witness list, or proposed division of trial advocacy is before the Court. Nor has Defendant shown that Sainburg presently intends to act as trial advocate while testifying. To the contrary, in January 2026 Sainburg stated, “I am not permitted to be Ms. Belogolovskaya’s counsel at trial” and “If you wish to take this matter to trial, I do not expect to be counsel at trial.” (Simone Decl. ISO Reply, ¶ 3, Ex. A.) The May 5, 2026 Substitution of Attorney makes Sainburg attorney of record, but it does not by itself establish that he will examine witnesses, argue his own credibility, or serve as trial advocate while also testifying.

Defendant also argues that Sainburg’s continued participation will prejudice Defendant during discovery because he may depose Defendant about private conversations in which he personally participated with Defendant. But no concrete deposition dispute is presently before the Court. Defendant has not shown that Sainburg has noticed Defendant’s deposition, that he intends to defend Plaintiff’s deposition on matters involving his own conduct, or that any evidentiary hearing requiring his testimony is pending. On this record, the deposition concern supports denial without prejudice to a targeted future request; it does not support immediate disqualification from all representation.

Read together, Kennedy, Yim, and Lopez do not support the action-wide pretrial disqualification Defendant seeks on this record. Kennedy involved a child custody dispute in which counsel represented his son against the mother of counsel’s grandchild. Counsel’s household was a disputed subject of the custody issues, counsel’s firm had potential confidential information concerning the opposing mother through prior representation of her father, and counsel had already made factual assertions at a preliminary hearing in a manner that blurred advocacy, testimony, and offer of proof. (Kennedy, *supra*, 201 Cal.App.4th at pp. 1205-1213.) Yim involved a sexual abuse action by counsel’s daughter against counsel’s former spouse, with the alleged abuse occurring during the marriage. The Court of Appeal affirmed disqualification from trial, depositions, and pretrial evidentiary hearings because counsel was nearly certain to be a key witness and her dual role created a risk that the jury would accept her arguments as evidence based on her personal knowledge. (Yim, *supra*, 55 Cal.App.5th at pp. 583-586.) The Court of Appeal separately affirmed disqualification from all other phases of litigation based on counsel’s potential misuse of confidential information obtained through her 17-year marriage to the defendant. (*Id.* at pp. 586-589.) Lopez later clarified that Yim does not support categorical disqualification from all pretrial activities under rule 3.7 because Yim’s all-other-pretrial ruling rested on the independent confidential-information ground. (Lopez, *supra*, 81 Cal.App.5th at pp. 424-426 & fn. 9.)

That confidential-information concern is not shown here. Sainburg’s factual knowledge arises from his participation in the disputed neighbor communications and construction events. Defendant has not shown that Sainburg obtained Defendant’s confidential information through an attorney-client, fiduciary, spousal, or other protected relationship. Defendant also has not shown that Sainburg has already blurred advocacy and testimony at an evidentiary hearing, that a specific deposition dispute is before the Court, or that a trial setting presently requires the Court to decide whether Sainburg may act as trial advocate while testifying.

On balance, Defendant has shown that Sainburg is likely to be a material witness and that Defendant has not brought the instant motion for purely tactical reasons. Defendant has not, however, at this time made the convincing demonstration of detriment to Defendant or injury to the integrity of the judicial process required to override Plaintiff’s informed written consent and disqualify Sainburg from representing Plaintiff in this action. The Court resolves the disqualification issue in favor of Plaintiff’s right to representation by counsel of choice. (Lyle, *supra*, 122 Cal.App.3d at p. 482.)

Limited Scope Representation

Defendant's original procedural challenge was directed to Sainburg's Notice of Limited Scope Representation, which described the representation as "[t]hroughout entirety of the case, through judgment, for all appearances, communications, and non-jurisdictional service." (Simone Decl. ISO Mot. ¶¶ 3-4, Ex. A.) On May 5, 2026, Plaintiff filed a Substitution of Attorney naming Sainburg as attorney of record. Defendant's supplemental brief acknowledges that the substitution supersedes the prior limited-scope notice and renders the limited-scope procedural challenge moot. The request to strike the CIV-150 is denied as moot.

CONCLUSION

The motion to disqualify Robert Sainburg as counsel for Plaintiff is denied.